

KNOW YOUR RIGHTS

Legal Notice & Procedural Compliance Brief

1. Document Summary

Category: Police & Criminal Process

Sub-type: Arrest memo

Assessment: This is an arrest memo prepared under Section 47 read with Section 43 of the Bharatiya Nagarik Suraksha Sanhita, 2023, documenting the arrest of Ms. Purabi Bora by police on a criminal charge under Section 318(4) BNS.

Severity of Procedural Compliance Violations

■ **Serious Concerns**



1 check(s) could not be verified from the information given.

■ **DEFAULT BAIL: Compliant**

No chargesheet filed yet. Default bail becomes available on 09-09-2026 if chargesheet is not filed before then — 21 days remain (60-day window; offence up to 7 years; actual production-before-magistrate date stated in document).

2. Procedural Compliance Findings

S.35(3) BNSS notice before arrest [Arnesh Kumar (2014) / Satender Kumar Antil, 2026 INSC 115]

Status: **May be Non-Compliant**

Offence punishable up to 7 years (looked up from cited section); arrest was made after the event on the basis of investigation, and no other arrest power under S.35(1) has been established. No mention of the mandatory S.35(3) notice. Per Satender Kumar Antil (2026 INSC 115): notice is the rule and arrest the exception. The arrest may be illegal if no notice was in fact served.

Threshold basis for arrest without warrant [cognizability of the offence]

Status: **Compliant**

The cited offence(s) are cognizable — police ordinarily have power to arrest without a warrant. This does not by itself confirm the specific arrest power exercised was lawful; see the notice and other checks below for that.

Written grounds of arrest furnished to arrestee [Prabir Purkayastha (2024) / Vihaan Kumar, 2025 INSC 162]

Status: **May be Non-Compliant**

The document does not mention of written grounds of arrest recorded being furnished. Per Vihaan Kumar (2025 INSC 162): failure to furnish written grounds violates Article 22(1), renders the arrest itself illegal, and is a ground for bail even where statutory bail restrictions exist — the burden is on the state to prove grounds were furnished.

Arrest memo attested by witness, family informed, medical exam [DK Basu (1997)]

Status: **Compliant**

Witness attestation, family notification, and medical exam all recorded.

Woman not arrested between sunset and sunrise [S.46(4) CrPC/ Sheela Barse]

Status: **Non-Compliant**

Female arrestee taken at 22:30 (outside 06:00-18:00). Prior magistrate permission mandatory.

Female officer involved in custody/interrogation of female arrestee [Sheela Barse (1983)]

Status: **Cannot Determine**

Female officer involvement status is unclear from the document.

Produced before magistrate within 24 hours [Art. 22(2)/S. 58 BNSS]

Status: **Compliant**

Produced 15.5 hours after arrest — within 24 hours.

Default bail on chargesheet delay [S.187 BNSS / S.167(2) CrPC]

Status: **Compliant**

No chargesheet filed yet. Default bail becomes available on 09-09-2026 if chargesheet is not filed before then — 21 days remain (60-day window; offence up to 7 years; actual production-before-magistrate date stated in document).

Overall Assessment: 3 procedural defect(s) found or suspected. Arrest may be legally vulnerable.

3. Missing or Unclear Information

- No specific factual details of the alleged offence are provided (dates, nature of transaction, parties involved, how cheating/dishonest inducement occurred)
- No amount or calculation breakdown is provided for the alleged property involved or loss claimed
- No supporting documents, evidence, or attachments are referenced or listed
- Grounds for arrest stated only as generic boilerplate ('For proper investigation of the offence') without specific factual basis
- No deadline for response, bail application, or further action is stated in the memo

5. Documents to Gather

- Copy of the FIR (if registered)
 - Any written notice received from police (Section 35/41A, Section 94/91)
 - Identity proof
 - Names and badge numbers of investigating officers, if known
 - Any prior correspondence with the police station
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This brief is generated by an automated analysis tool and does not constitute legal advice. Findings marked 'May be Non-Compliant' are inferences drawn from the absence of information in the source document, not confirmed violations. Consult a qualified advocate before taking any legal action.